

Arif Khan v. The Managing Director And 2 Others

High Court of Judicature at Allahabad · Division Bench · 4 August 2022 · WRIT - C No. 17037 of 2022 · **Writ disposed; petitioner relegated to Clause 6.8 objection with stay.**

HEADNOTE

A writ challenging a 7 May 2022 provisional assessment notice was disposed of without examining merits after the distribution licensee stated that an objection would be decided in a time-bound manner. The petitioner was given liberty to object under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the assessing officer was to decide that objection after hearing, preferably within four weeks. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Arif Khan approached the Allahabad High Court to quash a provisional assessment notice dated 7 May 2022 issued by the power distribution corporation and to restrain coercive recovery. The petition was first listed on 15 June 2022 and adjourned for want of urgency. At the 4 August 2022 hearing, counsel for the licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment

HOLDING

Without examining merits, a writ challenging a provisional assessment notice is disposed of with liberty to file an objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the assessing officer must decide that objection after hearing, preferably within four weeks, and coercive action on the demand stays for eight weeks or until the objection is disposed of, whichever is earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The writ against the provisional assessment notice was disposed of with liberty to object under Clause 6.8; the licensee was directed to decide the objection after hearing, and coercive recovery was stayed for eight weeks or until disposal. ¶ 1

assessment-6.8-alternate-remedy The Court declined to quash the provisional assessment on merits and relegated the consumer to the Clause 6.8 objection on the licensee's statement that the objection would be decided in a time-bound manner. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 7 MAY 2022

The Court expressly declined to express any opinion on the merits of the petitioner's challenge. ¶ 1